

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 994

Introduced by McKinney, 11.

Read first time January 13, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Nebraska Treatment and Corrections Act;
- 2 to amend section 83-1,135, Reissue Revised Statutes of Nebraska, and
- 3 section 83-1,107, Revised Statutes Supplement, 2025; to change
- 4 provisions relating to good time and parole eligibility; to provide
- 5 duties for the Department of Correctional Services; to provide for
- 6 applicability; to harmonize provisions; to repeal the original
- 7 sections; and to declare an emergency.
- 8 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) The department shall, no later than April 15, 2027,
2 recalculate the parole eligibility dates of all committed offenders who
3 were incarcerated on or after July 1, 2011, to reflect the changes to
4 section 83-1,107 made by this legislative bill.

5 (2) Such recalculations shall be completed in coordination with the
6 Board of Parole, using a phased implementation schedule to prevent
7 administrative overload and ensure public safety.

8 (3) No person shall be denied eligibility for parole solely because
9 of an administrative delay in recalculation under this section.

10 (4) Any individual on parole as of the effective date of this act
11 who was discharged from custody after July 1, 2011, and before the
12 effective date of this act, whose parole eligibility would have been
13 modified by this legislative bill, may request the Board of Parole to
14 reduce his or her parole term accordingly.

15 (5) The Legislature declares that the purpose of the changes made to
16 section 83-1,107 by this legislative bill is to clarify that good-time
17 reductions apply to both tentative release dates and parole eligibility
18 dates.

19 **Sec. 2.** Section 83-1,107, Revised Statutes Supplement, 2025, is
20 amended to read:

21 83-1,107 (1)(a) Within sixty days after initial classification and
22 assignment of any offender committed to the department, all available
23 information regarding such committed offender shall be reviewed and a
24 committed offender department-approved personalized program plan document
25 shall be drawn up. The document shall specifically describe the
26 department-approved personalized program plan and the specific goals the
27 department expects the committed offender to achieve. The document shall
28 also contain a realistic schedule for completion of the department-
29 approved personalized program plan. The department-approved personalized
30 program plan shall be developed with the active participation of the
31 committed offender. The department shall provide programs to allow

1 compliance by the committed offender with the department-approved
2 personalized program plan.

3 Programming may include, but is not limited to:

4 (i) Academic and vocational education, including teaching such
5 classes by qualified offenders;

6 (ii) Substance abuse treatment;

7 (iii) Mental health and psychiatric treatment, including criminal
8 personality programming;

9 (iv) Constructive, meaningful work programs; and

10 (v) Any other program deemed necessary and appropriate by the
11 department.

12 (b) A modification in the department-approved personalized program
13 plan may be made to account for the increased or decreased abilities of
14 the committed offender or the availability of any program. Any
15 modification shall be made only after notice is given to the committed
16 offender. The department may not impose disciplinary action upon any
17 committed offender solely because of the committed offender's failure to
18 comply with the department-approved personalized program plan, but such
19 failure may be considered by the board in its deliberations on whether or
20 not to grant parole to a committed offender.

21 (2)(a) The department shall reduce the term of a committed offender
22 by six months for each year of the offender's term and pro rata for any
23 part thereof which is less than a year.

24 (b) In addition to reductions granted in subdivision (2)(a) of this
25 section, the department shall reduce the term of a committed offender by
26 three days on the first day of each month following a twelve-month period
27 of incarceration within the department during which the offender has not
28 been found guilty of (i) a Class I or Class II offense or (ii) more than
29 three Class III offenses under the department's disciplinary code.
30 Reductions earned under this subdivision shall not be subject to forfeit
31 or withholding by the department.

1 (c) The total reductions under this subsection shall be credited
2 from the date of sentence, which shall include any term of confinement
3 prior to sentence and commitment as provided pursuant to section
4 83-1,106. Such reductions ~~and~~ shall be deducted from the:

5 (i) Minimum term, other than a mandatory minimum, to determine
6 parole eligibility; and

7 (ii) Maximum ~~maximum~~ term, to determine the date when discharge from
8 the custody of the state becomes mandatory.

9 (3) While the offender is in the custody of the department,
10 reductions of terms granted pursuant to subdivision (2)(a) of this
11 section may be forfeited, withheld, and restored by the chief executive
12 officer of the facility with the approval of the director after the
13 offender has been notified regarding the charges of misconduct.

14 (4) The department, in consultation with the board, shall ensure
15 that a release or reentry plan is complete or near completion when the
16 offender has served at least eighty percent of his or her sentence. For
17 purposes of this subsection, release or reentry plan means a
18 comprehensive and individualized strategic plan to ensure an individual's
19 safe and effective transition or reentry into the community to which he
20 or she resides with the primary goal of reducing recidivism. At a
21 minimum, the release or reentry plan shall include, but not be limited
22 to, consideration of the individual's housing needs, medical or mental
23 health care needs, and transportation and job needs and shall address an
24 individual's barriers to successful release or reentry in order to
25 prevent recidivism. The release or reentry plan does not include an
26 individual's programming needs included in the individual's personalized
27 program plan for use inside the prison. However, the department shall
28 include in the release or reentry plan information regarding the
29 individual's progress on the individual's personalized program plan for
30 use inside the prison.

31 (5)(a) The department shall make treatment programming available to

1 committed offenders as provided in section 83-1,110.01 and shall include
2 continuing participation in such programming as part of each offender's
3 department-approved personalized program plan developed under subsection
4 (1) of this section.

5 (b) Any committed offender with a mental illness shall be provided
6 with the community standard of mental health care. The mental health care
7 shall utilize evidence-based therapy models that include an evaluation
8 component to track the effectiveness of interventions.

9 (c) Any committed offender with a mental illness shall be evaluated
10 before release to ensure that adequate monitoring and treatment of the
11 committed offender will take place or, if appropriate, that a commitment
12 proceeding under the Nebraska Mental Health Commitment Act or the Sex
13 Offender Commitment Act will take place.

14 (6)(a) Within thirty days after any committed offender has been
15 paroled, all available information regarding such parolee shall be
16 reviewed and a case plan document shall be drawn up and approved by the
17 department. The document shall specifically describe the approved case
18 plan and the specific goals the department expects the parolee to
19 achieve. The document shall also contain a realistic schedule for
20 completion of the approved case plan. The approved case plan shall be
21 developed with the active participation of the parolee. During the term
22 of parole, the parolee shall comply with the approved case plan and the
23 department shall provide programs to allow compliance by the parolee with
24 the approved case plan.

25 Programming may include, but is not limited to:

- 26 (i) Academic and vocational education;
- 27 (ii) Substance abuse treatment;
- 28 (iii) Mental health and psychiatric treatment, including criminal
29 personality programming;
- 30 (iv) Constructive, meaningful work programs;
- 31 (v) Community service programs; and

1 (vi) Any other program deemed necessary and appropriate by the
2 department.

3 (b) A modification in the approved case plan may be made to account
4 for the increased or decreased abilities of the parolee or the
5 availability of any program. Any modification shall be made only after
6 notice is given to the parolee. Intentional failure to comply with the
7 approved case plan by any parolee as scheduled for any year, or pro rata
8 part thereof, shall cause disciplinary action to be taken by the
9 department resulting in the forfeiture of up to a maximum of three
10 months' good time for the scheduled year.

11 (7) While the offender is in the custody of the board, reductions of
12 terms granted pursuant to subdivision (2)(a) of this section may be
13 forfeited, withheld, and restored by the director upon the recommendation
14 of the board after the offender has been notified regarding the charges
15 of misconduct or breach of the conditions of parole.

16 (8) Good time or other reductions of sentence granted under the
17 provisions of any law prior to July 1, 1996, may be forfeited, withheld,
18 or restored in accordance with the terms of the Nebraska Treatment and
19 Corrections Act.

20 (9) Pursuant to rules and regulations adopted by the probation
21 administrator and the director, an individualized post-release
22 supervision plan shall be collaboratively prepared by the Office of
23 Probation Administration and the department and provided to the court to
24 prepare individuals under custody of the department for post-release
25 supervision. All records created during the period of incarceration shall
26 be shared with the Office of Probation Administration and considered in
27 preparation of the post-release supervision plan.

28 **Sec. 3.** Section 83-1,135, Reissue Revised Statutes of Nebraska, is
29 amended to read:

30 83-1,135 Sections 83-170 to 83-1,135.05 and section 1 of this act
31 shall be known and may be cited as the Nebraska Treatment and Corrections

1 Act.

2 **Sec. 4.** Original section 83-1,135, Reissue Revised Statutes of
3 Nebraska, and section 83-1,107, Revised Statutes Supplement, 2025, are
4 repealed.

5 **Sec. 5.** Since an emergency exists, this act takes effect when
6 passed and approved according to law.